

KABC010205102023



In the Court of the XXXIV Additional City Civil and Sessions Judge,
Bengaluru

Dated this the 15th day of February, 2024

Present :-

Sri. G.Raghavendra, B.Sc., LL.B.,
XXXIV Addl. City Civil & Sessions Judge,
Bengaluru.

Ex. No.1983/2023

Between:

Sri. Gautham Kumar B

.. Decree Holder

(By Sri. B.Roopsha, Advocate)

And

1. Sri. Eshwara Rao Pawar. L.

.. Judgment Debtor

(Ex-parte)

PARTIES TO I.A.

Between:

Smt. Suvarna Bai

Applicant / Objector.

(By Sri.Thyagaraja S., Advocate)

And

- ORDER ON I.A.**

Point No.2: As per the final order for the following:

REASONS

6. Point No.1: The DHR has filed this execution petition under order XXI rule 32(5) of CPC seeking the assistance of this Court as under:

1. Direct the Judgment Debtor to execute the Sale deed in favour of Decree Holder as per the Judgment and decree dated:10.01.2023 passed by this Hon'ble Court, in failure to execute sale deed by the Judgment Debtor, this Hon'ble Court may execute registered sale deed in favour of the Decree Holder in accordance with law.

2. To put the decree holder in physical possession of the suit schedule 'A & B' properties.

3.Attachment of movables of the Judgment Debtors.

7. In the affidavit accompanied to this I.A, Objector has sworn to that, execution petition schedule properties were purchased in the name of her husband/JDR and out of sale consideration of Rs. 48,00,000/- she has paid Rs.23,00,000/-, which was given by her parents. JDR has executed Registered agreement of sale dated 15.12.2018 in favour of JDR in respect of execution petition schedule properties behind her back without disclosing anything about the said transaction and she is having 50 % right in execution petition schedule properties.

8. The Objector has filed photo copy of plaint in O.S.No.4287/2023 filed by her against DHR and JDR of this execution petition, seeking declaration that the registered agreement of sale dated 15.12.2018 executed by 1st defendant/JDR in favour of 2nd defendant/DHR as null and void and not binding upon her and consequently declare that she is absolute owner having 50% right over schedule properties with possession, for declaration that the compromise

judgment and decree passed in O.S.No.2547/2020 before Hon'ble XXXIV City Civil and Sessions Judge, CCH-35 is not binding upon her, for permanent injunction restraining the defendants from interfering in the possession and enjoyment of properties by plaintiff and for other reliefs.

9. In the objection the DHR has stated that, the JDR has purchased execution petition schedule properties under registered sale deed dated 17.3.2017. The objector has not produced any document to show prima facie her parents had ancestral properties in the year 2017, her parents sold the ancestral properties and gave Rs.25,00,000/- to objector out of sale consideration.

10. The objector is questioning the Registered Agreement of sale dated 15.12.2018. The DHR has filed O.S. No. 2547/2020 on 08.06.2020 for specific performance of agreement of sale dated 15.12.2018. Both DHR and JDR have entered into compromise in O.S. No.2547/2020 on 10.01.2023 and DHR has filed this execution petition on 02.08.2023.

11. Order XXI rule 58(1)(a)(b) which reads as under:

“58. Adjudication of claims to, or objections to attachment of property.-(1) Where any claim is preferred to, or any objection is made to the attachment of, any property attached in execution of a decree on the ground that such property is not liable to such attachment, the Court shall proceed to adjudicate upon the claim or objection in accordance with the provisions here in contained:

Provided that no such claim or objection shall be entertained,-

(a) where before the claim is preferred or objection is made, the property attached has already been sold; or

(b) where the Court considers that the claim or objection was designedly or unnecessarily delayed. "

12. DHR has not sought for attachment of execution petition schedule properties. Objector also has not preferred any claim/objection that execution petition schedule properties are attached in this execution petition. In the absence of any document to show prima facie the parents of objector had ancestral properties in the year 2017, the parents of objector sold the ancestral properties and gave Rs.25,00,000/- to objector out of sale consideration and delay in questioning the registered agreement of sale deed dated 15.12.2018, this Court can consider that the claim/objection of objector is designedly delayed.

13. In view of the discussion I made above, this court of the opinion that objector failed to convince that this I.A., shall be entertained. Hence, I answer Point No.1 in Negative.

14. Point No.2: In view of the answer I arrived to point No.1, I proceed to pass the following:

O R D E R

The I.A. under Order XXI Rule 58 read with section 151 of Code of Civil Procedure, 1908, filed by the Applicant/ Objector is rejected.

No order as to costs.

(Dictated to the Stenographer, transcribed and typed by her, transcript corrected, signed and pronounced in the open court on this the 15th day of February, 2024).

RAGHAVENDRA
G

Digitally signed by
RAGHAVENDRA G
Date: 2024.02.16
16:29:38 +0530

(G.Raghavendra)
XXXIV Addl. City Civil & Sessions Judge
Bengaluru.